

SENATE BILL 1838

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 7; Title 49, Chapter 8 and Title 49,
Chapter 9, relative to tenure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-8-301, is amended by deleting the section and substituting:

(a) The board of regents and each state university board shall adopt a tenure policy for faculty at the institutions governed by the board. The policy must allow faculty members who received tenure before July 1, 2026, to retain the status in accordance with the policy, but must not allow the institutions governed by the board to confer any new tenure status on faculty members on or after July 1, 2026.

(b) Pursuant to this part, the board shall:

(1) Define the nature of tenure and the rights and responsibilities of faculty members with tenure in accordance with this section;

(2) Provide for the termination of faculty members with tenure for adequate cause, for retirement or disability, or for financial or curricular reasons in the discretion of the board or its designee; and

(3) Provide for all other matters relating to tenure deemed necessary by the board in accordance with this section.

SECTION 2. Tennessee Code Annotated, Section 49-7-1903(2), is amended by deleting "tenure," and "or tenure".

SECTION 3. Tennessee Code Annotated, Section 49-9-209(d)(1), is amended by deleting subdivision (H) and substituting:

(H) Adopt a policy governing the granting and removal of tenure for faculty members; provided, that the policy must allow faculty members who received tenure before July 1, 2026, to retain the status in accordance with the policy, but must not allow the institutions governed by the board to confer any new tenure status on faculty members on or after July 1, 2026;

SECTION 4. Tennessee Code Annotated, Section 49-9-1603, is amended by deleting subsection (d) and substituting:

(d) Faculty of the institute shall not be:

(1) Awarded tenure on or after July 1, 2026; or

(2) Required to gain joint appointment in another division of the

University of Tennessee.

SECTION 5. For purposes of adopting policies, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.